

		The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court’s concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff to give notice.
117	Navarro Arevalo vs. Gold Coast Baking Company, Inc. 2022-01243370	Status Conference
119	Johnson vs. Stremicks Heritage Foods, LLC 2023-01351048	Motion for Approval of PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff’s motion for approval of a \$200,000 PAGA settlement. The court has the following questions and comments: <u>As to the Settlement:</u> 1. The parties must confirm the final gross settlement amount, i.e., whether the escalator provision (§ 22) has been triggered. 2. Plaintiff should provide the estimated a high, low, and average amounts of the individual PAGA awards. 3. Plaintiff must provide an invoice or quote from the settlement administrator. 4. The release provision (§ 8) is overbroad and/or vague. Delete “Amended” from the first sentence as no amended complaint was filed. Delete “or” between “Action” and “based” in the first sentence. Delete the last sentence in paragraph 8 in its entirety.

		Relatedly, the release should state it applies to such claims against defendant. 5. Provide the initial notice letter and any amended notice letters to the LWDA. 6. Plaintiff's counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 7. The parties should state in declarations filed with the court whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declarations shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the proposed settlement on that case. 8. Plaintiff's counsel seeks attorneys' fees totaling 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys' fee award that exceeds 30%. Additionally, the claimed lodestar appears to include hours incurred outside this PAGA-only matter. Counsel should provide the lodestar for this matter only and explain why any other hours incurred in other cases should be considered here. 9. Plaintiff's counsel seeks litigation costs in the amount of \$13,652.64. ROA 75 ¶ 56 Ex. 3. The request includes numerous costs the court does not reimburse and should be removed, including postage (\$21.38, \$8.65, \$8.65, \$8.53) and legal research (\$670). Id. Additionally, it appears numerous costs relate to the class and/or other actions (\$219.97, \$15.65, \$1,492.98). Plaintiff should clearly identify the costs incurred in this PAGA-only action and explain why costs incurred in any other action should be reimbursed here. Additionally, the \$9,000 cost for mediation must be supported by an invoice. Id. 10. The court is unlikely to approve an enhancement award in excess of \$5,000 for plaintiff absent unique circumstances. <u>As to the Notice:</u> 11. The settlement (¶ 18) purports to attach a notice as Exhibit A, but nothing is attached or otherwise provided for the court's review. 12. The notice should be prepared consistent with all of the above. 13. The notice must explain the claim and the financial terms of the settlement, including the portions and amounts for the LWDA and Aggrieved Employees, and explain and include the revised release.
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14. The notice must inform aggrieved employees they cannot exclude themselves from the settlement and that they will not suffer retaliation by cashing their checks.
15. Plaintiff must also confirm whether the notice needs to be prepared in languages other than English.

As to the Proposed Order and Judgment:

16. The proposed order and judgment should be revised consistent with the above.
17. Remove counsel's information from caption page.
18. The settlement and notice, in all languages, should be identified and attached as exhibits. ¶ 2.
19. The term "Released Parties" does not appear in the settlement and should be removed. ¶¶ 2, 13.
20. As explained above, the GSA must be certain. ¶ 5.
21. The service award and administration costs will be certain, not "up to." ¶¶ 8-9.
22. Include the actual release, which should be referred to in its singular form. ¶ 11.
23. Remove the sentence "Plaintiff and all Aggrieved Employees will be forever barred from pursuing against Defendant any and all Settled Claims during the PAGA Period." ¶ 11.
24. Include the following paragraph: "The court orders the parties and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement."
25. Propose a date for a final accounting hearing. The court conducts final accounting hearings on Thursdays at 2:00 p.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 16 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks.

The hearing on plaintiff's motion for approval is continued to December 3, 2026 at 2:00 p.m. in Department CX102 to permit the parties to address and respond to the above issues. A supplemental brief shall be filed at least 16 court days before the hearing and shall address as necessary each of the above points. The parties must provide redlined versions of all revised

		documents (e.g., revised settlement agreement, revised notice, revised proposed order) and any settlement provisions revised via amendment. Plaintiff is ordered to give notice, including to the LWDA, and to file proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents and file proof of service.
120	Romero vs. BSH Home Appliances Corp 2024-01386303	Motion for Approval of PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Christina Romero's Motion for Approval of PAGA Settlement is GRANTED. This is a PAGA-only action. On 3/18/2024, Plaintiff Christina Romero filed a PAGA complaint against Defendant BSH Home Appliances Corp. (ROA #2.) Defendant answered on 5/15/2024. (ROA #15.) The operative complaint is the first amended complaint, filed on 1/8/2025 pursuant to the parties' stipulation and the court's order granting leave, which alleges a single cause of action for PAGA civil penalties based on various Labor Code wage-and-hour violations. (ROA #44.) On 9/4/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement and submitted for the Court's review the Joint Stipulation of PAGA Settlement. The motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of \$360,000. The settlement includes the claims of 191 PAGA Aggrieved Employees, defined as "All persons who are or were employed by Defendant as hourly non-exempt employees in the State of California at any time during the PAGA Period." The PAGA Period is 1/10/2023 to 8/10/2024. On 1/29/2026, the Court continued the first hearing on the motion and asked Plaintiff's counsel to address various issues. (ROA #79.) On 6/4/2026, the Court continued the second hearing on the motion and asked Plaintiff's counsel to address various issues. (ROA #92.) Plaintiff has now submitted the parties' First Amendment to Joint Stipulation of PAGA Settlement and a revised cover letter/notice to aggrieved employees that will accompany the payment to them. (See ROA #95, Exhs. 2-3.) Based on a review of all submissions made in support of the Motion, the Court finds the settlement is fair, adequate, and reasonable.